AS TO THE ADMISSIBILITY OF

Application No. 14170/88
by William Christopher HARWARD
against Norway

The European Commission of Human Rights sitting in private on 12 March 1990, the following members being present :

MM. C.A. NØRGAARD, President
S. TRECHSEL
F. ERMACORA
G. SPERDUTI
E. BUSUTTIL
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
J. CAMPINOS
H. VANDENBERGHE
Mrs. G.H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY
Mr. L. LOUCAIDES

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 13 November 1987 by William Christopher Harward against Norway and registered on 31 August 1988 under file No. 14170/88;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant is a United Kingdom citizen, born in 1950. He is a businessman and when introducing his application he was serving a 13-year prison sentence in Norway. Before the Commission he is represented by the law firm Sears Blok, Solicitors, London.

The applicant was arrested in Sweden on 27 May 1986 and charged with drug trafficking. On 14 August 1986 he was extradited to Norway. On 15 August 1986 he was brought before the Oslo City Court (byrett) where he was informed of the charges brought against him in Norway. At the end of the court session the City Court decided on the basis of the documents and information then available to detain the applicant on remand in solitary confinement. This measure was considered necessary in order to prevent the applicant from absconding and from obstructing the gathering of further evidence in the case. Restrictions on correspondence and visits were imposed in

accordance with Section 186 of the Criminal Procedure Act (Straffeprosessloven) which reads:

(translation)

"When under arrest or in detention everyone has the right to uncontrolled written and oral communications with his public defence counsel.

Otherwise the court may decide, insofar as it is necessary for the investigation, that the detainee shall not be allowed to receive visits or send or receive letters or other mail, or that visits or correspondence are allowed only under police surveillance. This does not apply to correspondence with or visits from a public authority unless this is expressly mentioned in the court decision. The court may also decide that the detainee cannot have access to newspapers or television."

Through the British Embassy in Norway the applicant's closest relatives in the United Kingdom were informed of the procedure to follow if they wanted to visit him while in solitary confinement. It furthermore appears that the applicant's fiancée visited him on 17 December 1986.

The applicant was kept in detention on remand until his conviction by the Eidsivating High Court (Lagmannsrett) on 3 November 1987. Solitary confinement, however, ended on 15 April 1987 whereas the ban on social visits was lifted from about the middle of March. The applicant's case was examined by the High Court together with the case of five other persons, all accused of drug trafficking. By the above-mentioned judgment they were all found guilty and sentenced to imprisonment ranging from 41/2 to 13 years.

The applicant and four of his co-accused appealed against the judgment to the Supreme Court (Høyesterett) which pronounced judgment on 25 March 1988. In the judgment Justice Bugge stated on behalf of the unanimous Court inter alia:

(translation provided by the applicant)

"With respect to (the applicant) ... the appeal concerns, firstly, the application of the rules of procedure (and) ... furthermore an appeal against the application of the law ...

I. The appeal against the application of the procedural rules

Preliminary remarks

It is maintained by (the applicant) that a number of errors and omissions have been committed in the handling of (his) case, during the investigation and the preparation of the case as well as during the main hearing before the High Court. In (the applicant's) view, the errors entail an infringement both of actual provisions of the Criminal Procedure Act and of the minimum requirements pertaining to the court procedure in criminal cases listed under Art. 6 of the European Convention on Human Rights of 4 November 1950, particularly para. (3) (a)-(c) and (e). Even if each individual error might not be of the kind to which importance may be attached under Norwegian statutes of legal procedure, the errors must be seen as a whole, and in (the applicant's) opinion, there is no doubt that, in an overall sense, they may have influenced the decision on the question of guilt (and) must lead to the quashing of the High Court sentence, cf. the first subsection of Section 360 of the Criminal Procedure Act. (The applicant

has) not, it is alleged, received a proper and impartial trial here in Norway, a fair trial ...

In the light of the above, I find it necessary - before looking at each of the representations - to give a somewhat more detailed account of the handling of the criminal case by the Public Prosecution Authority and the Courts of Law.

(The applicant) was arrested by Swedish police in Gothenburg on 27 May 1986, and subsequently extradited to Norway ... (He was) charged by the Norwegian Prosecution Authority with serious narcotics offences - the importation of a very considerable quantity of heroin - which pursuant to the third subsection of Section 162 of the Penal Code may carry up to 15 years' imprisonment. The case has been the subject of an extensive investigation. This seems principally to be a consequence of the fact that (the applicant) has refused to make statements to the police in order to elucidate the punishable acts ... In order to ascertain the extent of the punishable acts, the police (has) been obliged to carry out the painstaking task of obtaining and checking information, partly in collaboration with foreign police authorities.

After (his) arrest and extradition to Norway, (the applicant has) been in custody. In order to safeguard evidence, it has been necessary to subject (him) to a ban on letters and visits for long periods, and for fear that (he) might abscond, (his) release has been out of the question. The custody period up until the judgment was protracted. This is due not only to the extent of the investigations, but also to the fact that it was regarded as crucial in terms of the evidence to be able to bring the case against the convicted persons collectively ... (T)he fixing of a date for the main hearing had to fit in with the work schedule of the six defence counsel appointed. I would, however, underline that, in the High Court sentence, (the applicant has) been given full deduction from the punishment for endured periods of detention on remand, including time spent abroad. (He) will also be credited with the detention on remand period from the passing of the High Court sentence until the time of the Supreme Court decision.

Next, I would mention that from the time of (his) arrest, (the applicant) has by his own choice had defence counsel appointed at public expense to assist (him) not only during detention on remand sessions in court, but also otherwise during the investigation and the preparation of the case. During the court sessions as well as in connection with the rest of the prosecution, an interpreter has been placed at the disposal of (the applicant) and (his) defence counsel. During the court sessions and the taking of statements by the police, (the applicant has) been informed of (his) right to refuse to make a statement, and whenever the police have been taking statements, the statement taken down has been translated into English and read out to (him). During the preparation of the case, the defence counsel have, in the customary manner, been given the opportunity of familiarising themselves with the documents in the case, which - and I will come back to this - have, in part, also been translated into English.

The main hearing in the High Court began on 12 October 1987 and lasted until 30 October, a total of 15 court days. 13 witnesses were examined, and extensive documentation was made. The six defendants appeared with their individual defence counsel briefed at public expense. It appears from the court records that the defence counsel for (the applicant), after counsel for the prosecution had given an account of the formal indictment, was allowed to address the Court with

comments relating to the preparation of the case, and that the other defence counsel also availed themselves of their right under the third subsection of Section 289 of the Criminal Procedure Act, cf. Section 313, to comment in connection with the prosecution counsel's account. It further appears that following the examination of each witness and the reading out of each written piece of evidence, the defendants were allowed to comment. It has not been alleged that (the applicant was) debarred by the Court from presenting any evidence offered by (him). The proceedings of the High Court were, in their entirety, given a running translation - simultaneous translation - by court interpreters appointed. I would add that the cost of the assistance of defence counsel and the service of interpreters in the High Court and during the preparation of the case was covered, in the customary manner, by the State, (the applicant) being free of any liability for costs.

It appears from the court records that (the applicant did not wish) to give evidence on (his) own behalf before the High Court ... On the 9th day of the court proceedings, 22 October, (the applicant) was allowed to address the Court in order to read out a declaration - 'Appeal' - containing criticism of the procedure in the High Court under three items, demanding that this be referred directly to the Supreme Court. In this connection, he requested that the case be postponed until such time as the Supreme Court had come to a decision with regard to his complaints. The High Court did not comply with this. I will be coming back to this declaration.

(The applicant has) also been given the opportunity of being present during the hearing of the appeal case in the Supreme Court, where (he was) presented from custody. Before the Supreme Court, (he was) represented by new defence counsel, appointed at public expense ... The appeals proceedings took two court days. In the Supreme Court also, the entire proceedings were given a simultaneous translation into English by authorised interpreters.

Finally, I would stress that concerning the appeals against the application of procedural rules, the Supreme Court has the full competence to try both the procedural issues and the factual basis for the appeals, according to the usual free assessment of the evidence. The content of the court records of the subordinate court may optionally be supplemented and corrected using the information that is otherwise available.

The individual objections to the application of procedural rules

As has been mentioned, a number of objections have been cited in the declarations of appeal against the handling of (the applicant's) case by the police and the Prosecution Authority, partly during the early stages of the investigation. In the case of some of the representations, it has not been attempted to prove before the Supreme Court that they may have been of significance to the decision made by the High Court; thus I shall leave them out of account. The most important complaints associated with the application of procedural rules are, according to the defence counsel, the ones I shall be discussing under 1-3 in the following.

1. Assistance by a British lawyer

...

2. Prejudgment

...

3. Translation of case documents

At an early stage of the investigation, (the applicant), through his defence counsel ... presented a demand that the documents in the case be translated into English. The demand was put forward to the Police as well as, at a later stage, to the Public Prosecutors of Eidsivating. (The applicant) claims that the demand was not met, and that (he) and (his) defence counsel were thereby prevented from preparing (his) defence in a satisfactory manner. (He has) referred to the provisions in Sections 242 and 264 of the Criminal Procedure Act, which must, in (his) opinion, presuppose that any foreigner subject to criminal prosecution, shall be allowed to familiarise himself with the documents in the case presented in his own language. They have further referred to Sections 2-8 of the Prosecution Instructions and Art. 6 para. 3 (a) and (b) of the European Convention on Human Rights, which stipulate that the accused shall be unconditionally entitled to be informed of the basis for the charges and the content of the same in a language he understands, and to be given sufficient time and opportunity to prepare his defence.

During the appeal hearing, the defence counsel has argued partly that (the applicant) was unconditionally entitled at public expense, to have all case documents translated into English, and partly that the defence counsel must at least be unconditionally entitled to evaluate what documents it was necessary to have translated for the sake of the defence.

I find it clear that this challenge of the application of the procedural rules is also groundless.

As has been mentioned, (the applicant's) defence counsel had every opportunity to familiarise (himself) with all the documents in the case during the investigation and the preparation of the case, and interpreters have been placed at their disposal to the extent required by the defence counsel for the sake of communication with (the applicant). It has also been established that the content of the charges and the formal indictment, all court records, and important statements made to the police by the accused, were translated into English and placed at their disposal.

In reply to (the applicant's counsel's) request for translations, the Eidsivating Public Prosecutors stated in a letter of 30 July 1987:

'In your letter of 16.07.87, you ask that the case documents be translated into English. This cannot be complied with. As you point out, the case is an extensive one, and a complete translation would be highly time-consuming, highly expensive, and would, in my view, not be required out of consideration for the accused's interests in the case. The formal indictment will, of course, be translated into English, in accordance with the first subsection of Sections 2-8 of the Prosecution Instructions. If there are certain documents whose translation is regarded as being of particular importance, this will be considered. I expect to receive further information in detail from you about this.'

To a renewed enquiry on the same matter, the Public Prosecutors replied in a letter of 31 August 1987:

'Neither the Law Courts Act nor the Criminal Procedure Act

entitle a defendant to have the case documents translated into his mother tongue. During the main hearing, an English interpreter will of course be present. I can inform you that simultaneous interpretation is being planned. Moreover, an interpreter may be used during the preparation of the case to the extent to which you find it necessary.

Thus, I see no reason to comply with your request for translation into English of all the documents in the case.'

Sections 242 and 264 of the Criminal Procedure Act concern the right of the suspect or accused and the defence counsel to familiarise themselves with the case documents, at the investigative stage and after the issue of a formal indictment, respectively. The Act does not mention translation in cases where the person in question does not understand Norwegian. On the other hand, the Prosecution Instructions contain the following provision in Sections 2-8:

'If the accused does not understand Norwegian, the Prosecution Authority's decision on the question of prosecution, cf. Chapters 17 to 22, or the legal remedies declaration, cf. Chapter 27, shall be translated into a language which the person in question can understand. The translation should normally be in writing, unless it seems that no objections may be raised against the content of the decision being translated verbally when the decision is served on or announced to the accused.

The provision in the first subsection also applies to service of a sentence, cf. Sections 26-3, and to notification of decisions and other court rulings.

Furthermore, the case documents shall be translated at public expense to the extent seen as necessary in order to safeguard the accused's interest in the case.'

In the report from the committee which prepared the revision of the Prosecution Instructions - NOU 1984: 27 - a statement is quoted on page 89, made by the Chairman of the Norwegian Bar Association's Permanent Legislation Committee on Criminal Law and Criminal Procedure, subscribed to by the Main Committee of the Bar Association. On the question of translation, it says here, among other things:

'Otherwise, I agree with Public Prosecutor (...) who states that a complete translation of the documents in a criminal case would be a task of such magnitude, both as regards time and expense, that this should not occur as a general rule. Anyway, it has been my experience that this is not normally required.

On the other hand, I do not rule out the possibility that in exceptional cases, a translation of part of the documents may be required. I am thinking particularly of translations into the mother tongue of the person in question of the statements made by the accused himself during the investigation.

Thus, I would suggest that the Bar Association support the view that the documents in a criminal case shall not automatically be translated into the mother tongue of the person in question, but that the opportunity shall be provided for the defence counsel to ask for the translation of specifically selected documents as required. This right of the defence counsel should be anchored in a provision in the Prosecution Instructions.'

On its own behalf, the Committee then states in the same reference as follows:

'In the Committee's opinion, it should not be stipulated as a general rule that all the documents in a criminal case should be translated if the defendant does not understand Norwegian.

Such a system would lead to great financial and practical problems, and it also seems unnecessary, cf. the statement by the Bar Association. A concrete assessment should be made of the degree to which the documents in a criminal case should be translated, and, as a matter of course, importance must here be attached to the defence counsel's views on the subject. But the accused and the defence counsel should probably not be given the right to demand that specific documents be translated. The crucial factor should be to what degree a translation is regarded as necessary in order to safeguard the accused's interest in the case, cf. the third subsection.'

The provision proposed by the Committee, Sections 2-20, is identical to Sections 2-8 of the Instructions.

Thus, it is clearly presupposed in the above that the accused or the defendant is not entitled to have all case documents translated into his own language or into another language that he understands. Importance should be attached to what the defence counsel regards as required in order to safeguard the interest of his client, and it is presupposed that he may ask to have specially selected documents translated. But the defence counsel and his client have no unconditional right to demand that specific documents be translated; the decisive factor is, as stated in the Instructions, what is regarded as necessary in order to safeguard the client's interest in the case. The provision must naturally be seen in connection with the provisions of the Act and the Instructions pertaining to the use of interpreters in criminal cases, which I have previously mentioned as far as this case is concerned. Moreover, the report points out that the question of translations may be referred to the Court at any stage of the case.

The provisions of the Prosecution Instructions on this point must be assumed to meet the requirements set up by the European Court of Human Rights relating to the requirement for translation of documents in criminal cases under Art. 6 of the Convention. In Paul Sieghart: The International Law of Human Rights, the following is quoted on p. 298, with reference to several decisions:

'EHR 6 (3) (a) requires that any summons served on an accused person should be accompanied by a translation in a language which he understands. It does not, however, give a general right for the accused to have the court files translated, but only those procedural documents which are necessary for his defence.'

In view of the above, there seems to me to be no doubt that the standpoint adopted by the Eidsivating Public Prosecutors on the question of translation in their letters of 30 July and 31 August 1987, was in accordance with the rules in force. The defence counsel (was) informed that (he) could expect special documents which (he) might regard as being of special importance to be translated. What the defence counsel had demanded, and what is argued in the appeal case, is, however, that provisions should have been made for all the case documents to be translated - a highly demanding task,

incidentally, in a case where the number of document pages has been given as approx. 1,100. No request was made for specially selected documents, beyond the ones already available in translation, to be translated, which has also been admitted by the defence counsel. Also, the question of the magnitude of the translation work was not raised at any stage of the proceedings with the Examining and Summary Court or with the High Court.
...
In view of the above, I cannot see that any error has been demonstrated in the application of procedural rules in the criminal case against (the applicant), or that there is any foundation for the assertion that (he) has not received a fair trial in the High Court. Consequently, the appeal lodged against the application of procedural rules must be rejected."

COMPLAINTS

1. Under Article 6 para. 3 (a) of the Convention the applicant complains that he was not informed promptly, in a language which he understood and in detail, of the cause of the accusation against him. He also complains, under Article 6 para. 3 (b) of the Convention, that he was not given adequate time and facilities for the preparation of his defence. The applicant bases this complaint on the refusal of the prosecution to translate the case documents and on his limited possibilities of obtaining these documents.

2. The applicant furthermore complains that the regime to which he was subjected while in detention on remand was in violation of his right to respect for his private and family life and for his correspondence contrary to Article 8 of the Convention.

3. Finally the applicant maintains that his solitary confinement from 14 August 1986 until 15 April 1987 violated his right to freedom of association with others within the meaning of Article 11 of the Convention.

THE LAW

1. The applicant has complained that he was not informed promptly, in a language which he understands and in detail, of the nature and cause of the accusation against him as guaranteed to him by Article 6 para. 3 (a) (Art. 6-3-a) of the Convention. Under Article 6 para. 3 (b) (Art. 6-3-b) of the Convention the applicant has also complained of inadequate time and facilities for the preparation of his defence; he has referred to the lack of possibilities of obtaining documents and the lack of translation of the case file. As regards the translation of documents the Commission has considered these complaints not only under the provisions invoked by the applicant but also under Article 6 para. 3 (e) (Art. 6-3-e) of the Convention, which guarantees the free assistance of an interpreter if the accused cannot understand or speak the language used in court.

The European Court of Human Rights has observed in the Kamasinski case (cf. Eur. Court H.R., Kamasinski judgment of 19 December 1989, Series A no. 168, para. 74):

"74. The right, stated in paragraph 3 (e) of Article 6 (Art. 6-3-e)), to the free assistance of an interpreter applies not only to oral statements made at the trial hearing but also to documentary material and the pre-trial proceedings. Paragraph 3 (e) (Art. 6-3-e) signifies that a person charged with a criminal offence who cannot understand or speak the language used in court has the right to the free assistance of an interpreter for the translation or interpretation of all those documents or statements in the

proceedings instituted against him which it is necessary for him to understand or to have rendered into the court's language in order to have the benefit of a fair trial (see the Luedicke, Belkacem and Koç judgment of 28 November 1978, Series A no. 29, p. 20, para. 48).

However, paragraph 3 (e) (Art. 6-3-e) does not go so far as to require a written translation of all items of written evidence or official documents in the procedure. The interpretation assistance provided should be such as to enable the defendant to have knowledge of the case against him and to defend himself, notably by being able to put before the court his version of the events."

The Commission recalls that the applicant was extradited to Norway on 14 August 1986 after the extradition procedures had come to an end. Even assuming that the applicant was unaware, until then, of the charges brought against him in Norway the Commission recalls that the reasons for his arrest and subsequent detention were thoroughly explained to him with the assistance of an interpreter in the Oslo City Court the following day. The Commission also notes the judgment of the Supreme Court of 25 March 1988 which thoroughly sets out the applicant's possibilities of obtaining a translation of documents and the assistance of interpreters. It appears that interpreters were placed at the applicant's and his counsel's disposal as required by them for the sake of communication and the contents of the charges, the formal indictment, court records as well as important statements made to the police by the applicant were translated into English and placed at their disposal.

The Commission is satisfied that, in these circumstances, the applicant's rights under Article 6 para. 3 (a) (Art. 6-3-a) and (e) (Art. 6--3-e) were respected (cf. also No. 8361/78, Dec. 17.12.81, D.R. 27 p. 37). It follows that this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

With regard to the applicant's complaint under Article 6 para. 3 (b) (Art. 6-3-b) it is true that the applicant's access to the case file was limited. However, a system whereby the right to inspect the file is restricted to the defendant's lawyer is not in itself incompatible with Article 6 para. 3 (b) (Art. 6-3-b) of the Convention (cf. above-mentioned Kamasinski judgment para. 88). Furthermore it follows from the judgment of the Supreme Court that the applicant's defence counsel had every opportunity to familiarise himself with all the documents in the case during the investigation and the preparation of the case, that the applicant could freely communicate with his counsel during this period and could receive translations of documents which he found would be of importance. Furthermore, the Commission recalls that the pre-trial period was more than one year.

In these circumstances the Commission finds that the applicant had adequate time and facilities for the preparation of his defence and it follows that this part of the application is also manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. The applicant has complained that his detention on remand violated Article 8 (Art. 8) of the Convention, i.e. his right to respect for his private and family life and his correspondence. The Commission assumes that the applicant in particular intends to refer to the fact that he was placed in solitary confinement from 14 August 1986 until 15 April 1987 and that restrictions under Section 186 of the Criminal Procedure Act were imposed during most of this period.

The Commission considers that while detention, lawful under Article 5 (Art. 5) of the Convention, is by its nature a limitation on

private and family life, it is an essential part of a prisoner's right to respect for family life that the authorities assist in maintaining effective contact with his close family members (mutatis mutandis No. 9054/80, Dec. 8.10.82, D.R. 30, p. 113). Furthermore, as regards the applicant's correspondence the Commission recalls the judgment of the European Court of Human Rights in the case of Silver and Others (judgment of 25 March 1983, Series A no. 61) in which the Court set out general principles from which it appears that the Contracting States enjoy a certain but not unlimited margin of appreciation in the matter of the imposition of restrictions on correspondence. Nevertheless, the aim of preventing disorder or crime may justify wider measures of interference in a case of a person held on remand and against whom inquiries with a view to bringing criminal charges are being made since in such a case there is often a risk of collusion (cf. Eur. Court H.R., Schönenberger and Durmaz judgment of 20 June 1988 Series A no. 137, p. 13, para. 25).

In the present case the Commission recalls first of all that during the period of time to which the applicant refers he was not serving a sentence but was placed in detention on remand pending trial. The applicant had been charged with grave narcotics offences and the solitary confinement and the restrictions on visits and mail had been imposed on him by the courts as being necessary to prevent him from escaping or impeding the investigations by removing evidence or by warning or influencing others. Furthermore, the Commission is satisfied that the restrictions imposed were lifted when they were no longer deemed necessary and, finally, visits by close family members were not excluded.

In these circumstances the Commission finds that there were sufficient grounds for justifying the restrictions imposed and that the authorities cannot be considered as having gone beyond the margin of appreciation left to them. The limitations on the applicant's private and family life and on his correspondence were therefore in the Commission's view proportionate to the legitimate aim pursued and necessary in a democratic society for the prevention of disorder or crime within the meaning of Article 8 para. 2 (Art. 8-2) of the Convention (cf. also No. 10263/83, Dec. 11.3.85 unpublished as regards Article 8, (Art. 8) otherwise D.R. 41 p. 149). It follows that this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

3. The applicant has finally complained, under Article 11 (Art. 11) of the Convention, that his right to associate with others has been violated during his solitary confinement from 14 August 1986 until 15 April 1987.

However, the Commission is not required to decide whether or not the facts alleged by the applicant disclose any appearance of a violation of this provision, as Article 26 (Art. 26) of the Convention provides that the Commission "may only deal with the matter ... within a period of six months from the date on which the final decision was taken".

In the present case the applicant's solitary confinement ended on 15 April 1987 whereas the application was submitted to the Commission on 13 November 1987, that is, more than six months later. Furthermore, an examination of the case does not disclose the existence of any special circumstances which might have interrupted or suspended the running of that period.

It follows that this part of the application has been introduced out of time and must be rejected under Article 27 para. 3 (Art. 27-3) of the Convention.

For these reasons, the Commission

DECLARES THE APPLICATION INADMISSIBLE

Secretary to the Commission	President of the Commission
(H.C. KRÜGER)	(C.A. NØRGAARD)